

Staff Report

Community Development

Replat: **K-State Research Park, Unit Five**

File No.: SUB-21-020

To: Manhattan Urban Area Planning Board

From: Barry T. Beagle, Senior Planner

Meeting Date: March 1, 2021

Applicant/Owner: Stormont Vail HealthCare, Inc.

Property Location: West side of N Manhattan Avenue between Research Park Drive and Research Park Court.

Total Area: 4.30 acres

Zoning: U, University District

Neighborhood zoning: north: U, University south: U, University
east: R, Single-Family west: U, University



Figure 1: Vicinity Map

BACKGROUND

REQUEST

Applicant seeks Final Plat approval of K-State Research Park, Unit Five, a replat of Lot 5, K-State Research Park, Unit One and Lot 1, K-State Research Park, Unit Four, to create a one-lot subdivision and vacate a 20-foot utility and pedestrian easement along the common lot line between the two existing lots.

PROJECT HISTORY

1994	Annexation and rezoning to U, University District
Jan. 8, 2001	Manhattan Urban Area Planning Board approves the Concurrent Plat consisting of the Preliminary Plat (Lots 1-9) and the Final Plat of Unit One, (Lots 1-5).
Jan. 16, 2001	City Commission considers accepting easements and rights-of-way.
May 20, 2013	Manhattan Urban Area Planning Board scheduled to approve the Final Plat of K-State Research Park Addition, Unit Two.
May 21, 2013	City Commission schedule to accept the easements and rights-of-way as shown on the Final Plat of K-State Research Park Addition, Unit Two.
April 15, 2019	Manhattan Urban Area Planning Board approve the Final Plat of K-State Research Park, Unit Three, a replat of Lot 4, K-State Research Park, Unit One.
May 7, 2019	City Commission schedule to accept the easements and rights-of-way as shown on the Final Plat of K-State Research Park Addition, Unit Two.
October 7, 2019	Manhattan Urban Area Planning Board approve the Final Plat of K-State Research Park, Unit Four.
November 5, 2019	City Commission acts to accept dedication of public rights-of-way and easements as shown on the Final Plat of K-State Research Park, Unit Four

PROJECT DESCRIPTION

Stormont Vail HealthCare proposes to build a medical care facility on the combined area of Lot 5, Unit One and Lot 1, Unit Four, the subject property. To accommodate construction of the proposed facility, the applicant seeks the replat to vacate an existing 20-foot Utility and Pedestrian Easement that is centered on the common lot line between the two lots. The proposed replat will vacate this easement as well as dedicate a Drainage Easement across the north end of the lot in addition to dedicating a 36-foot Utility Easement

adjacent to the Drainage Easement to accommodate an existing sanitary sewer line. As with the existing plats of subdivision, the site's frontage on N Manhattan Avenue will be platted with a no access restriction and retain a 25-foot Building Setback Line along Research Park Drive and Research Park Court, and, a 50-foot Building Setback Line along N Manhattan Avenue.

CONSIDERATION OF THE FINAL PLAT

The consideration criteria for final plats are found in the Subdivision Regulations, Section 6-403. Review of Final Plat, subsection (A), which states:

The MUAPB shall approve the Final Plat if it is in substantial conformance with the Preliminary Plat, as approved, including all requirements and conditions placed upon the Preliminary Plat by the MUAPB; and, the Final Plat complies with all requirements of the Subdivision Regulations as of the date of such final approval.

The proposed replat consolidates two existing platted lots into one including dedication/vacation of easements. The replat conforms to the original plat design of K-State Research Park and complies with the requirements of the Manhattan Urban Area Subdivision Regulations.

ALTERNATIVES

The MUAPB has the following alternatives concerning the issue at hand. The Board may:

1. **Approve** the Final Plat of K-State Research Park, Unit Five based on conformance with the Manhattan Urban Area Subdivision Regulations.
2. **Deny** the Final Plat of K-State Research Park, Unit Five indicating specifically how the Final Plat does not comply with the Manhattan Urban Area Subdivision Regulations.
3. **Table** the Final Plat of K-State Research Park, Unit Five to a specific date, indicating the reasons for tabling.

RECOMMENDATION

City Administration recommends **approval** of the Final Plat of K-State Research Park, Unit Five based on conformance with the Manhattan Urban Area Subdivision Regulations.

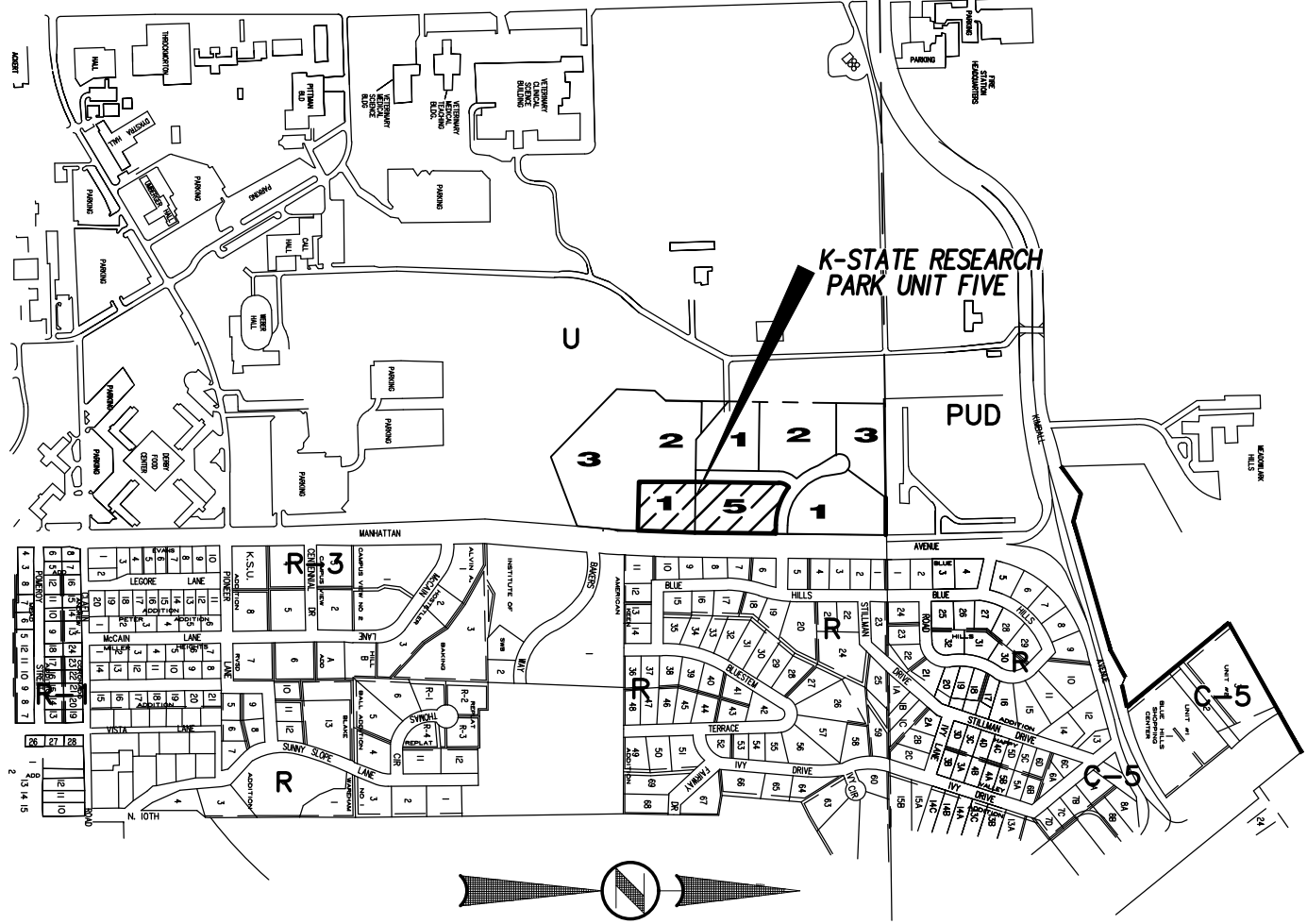
POSSIBLE MOTION

Approve the Final Plat of K-State Research Park, Unit Five based on conformance with the Manhattan Urban Area Subdivision Regulations, as recommended in the staff report.

Dated: February 16, 2021

Exhibits

1. Final Plat of K-State Research Park, Unit Five
2. Final Plat of K-State Research Park, Unit One
3. Final Plat of K-State Research Park, Unit Four



SITE MAP

BENCH MARKS:

- B.M. 1 = North Cap Bolt on Fire Hydrant West of the Intersection of Joseph Drive and Miller Parkway.
N. 12441.53, E. 24685.86
Elev. = 1284.08
- B.M. 5 = Cap Bolt at Grease Zerk on Fire Hydrant on the North side of Miller Parkway, 260' +/- West of Gated Entrance.
N. 12962.09, E. 23556.65
Elev. = 1264.62

OWNER'S CERTIFICATE

STATE OF KANSAS)
COUNTY OF RILEY) SS:

This is to certify that the undersigned are the owners of record of the land hereon described on this plat, and that the undersigned have caused the same to be surveyed and subdivided as herein set forth.

The undersigned, as such owners, do hereby state that all street right-of-ways as shown on this plat are hereby dedicated to the public. An easement and license to locate, construct, operate, inspect, replace and maintain, or authorize the location, construction, operation, inspection, replacement and maintenance of poles, wires, conduits, water, gas, and sewer pipes; required drainage channels or structures; hard and impervious surfaces; or, other structures necessary to carry out the function of the easement, upon the area marked for easements on this plat, is also hereby dedicated to the public. When, and if, used on this plat, the term "utility" shall include, by way of example, but not limited to, sewer, water, gas, electricity, cable t.v. and telephone. When, and if, used on this plat, the term "travel" shall include all forms of travel, by whatever means, unless the term is limited by other words or phrases, such as, "pedestrian travel", etc. The undersigned acknowledge that pursuant to K.S.A. 12-406, the dedication of right-of-ways and easements to the public constitutes a conveyance thereof to the City of Manhattan, Kansas, in trust, for the uses named, expressed or intended.

Given under my hand at Manhattan, Kansas, this ____ day of _____, 2021

Stormont-Vail HealthCare, Inc.
A Kansas Not-For-Profit Corporation

By: Robert S. Kenagy, President/ CEO

NOTARY CERTIFICATE

STATE OF KANSAS)
COUNTY OF RILEY) SS:

BE IT REMEMBERED, that on this ____ day of _____, 2021, before me, the undersigned, a notary public in and for the County and State aforesaid, came Robert S. Kenagy, President/CEO of Stormont-Vail HealthCare, Inc. a Kansas Not-For-Profit Corporation

_____, personally known to me to be the same persons who executed the foregoing Owner's Certificate and Quitclaim Certificate, and duly acknowledged their execution of the same.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my notarial seal on the day and year last above written.
SEAL

Notary Public

My appointment expires: _____

CERTIFICATE OF THE REGISTER OF DEEDS

STATE OF KANSAS)
COUNTY OF RILEY) SS:

This instrument was filed for record on the ____ day of _____, A.D. 20____ at _____ O'clock _____M., and duly recorded in Book _____ at Page _____

Register of Deeds

By _____ Deputy

STORM DRAINAGE NOTE:

Prior to the issuance of a building permit on the Lot set forth on this Plat, the calculations and designs for all necessary storm drainage detention improvements for that Lot shall be provided in conformance with the Storm Water Management Master Plan (SWMMP) and shall be reviewed and approved by the City Engineer. All necessary storm drainage improvements for the lot shall be constructed within the platted drainage easements, by the owner of the Lot, concurrent with the building. Maintenance of all detention facilities and drainage easements shall be the responsibility of the property owner. The term "maintenance" is hereby defined, as follows: mowing, maintaining a healthy turf condition, controlling erosion, removing obstructions from the detention outlet structure, the repair and/or replacement of damaged outlet structure components, and the periodic removal of accumulated sediment within the detention system.

This provision shall be deemed a covenant upon the Lot, running in favor of the City of Manhattan. In the event that the Owner of the Lot shall fail to maintain the detention facilities or the drainage easements, the City may serve a written notice of such failure (the "Notice of Delinquency") upon the owner of record, setting forth the manner in which they have so failed. Such Notice of Delinquency shall include a statement describing the obligation that has not been fulfilled and shall grant twenty (20) days within which the owner shall fulfill the obligations.

If said obligation is not fulfilled within the time specified, the City, in order to insure proper functioning of the detention facilities and the drainage easement, may perform the obligations listed in the Notice of Delinquency. All costs incurred by the City, in carrying out such obligations, may be assessed against the Lot, and said assessments may be established as liens upon said Lot.

MANHATTAN URBAN AREA PLANNING BOARD CERTIFICATE

STATE OF KANSAS)
COUNTY OF RILEY) SS:

Approved this ____ day of _____, 2021.
Manhattan Urban Area Planning Board
Manhattan, Kansas

Chairperson, Jerry Reynard

John E. Ball

Neil Parikh

Shelly Carver

Gary Slith

Phil Anderson

Attest:

Barry T. Beagle

Ken Ebert

CERTIFICATE OF THE CITY COMMISSION

STATE OF KANSAS)
COUNTY OF RILEY) SS:

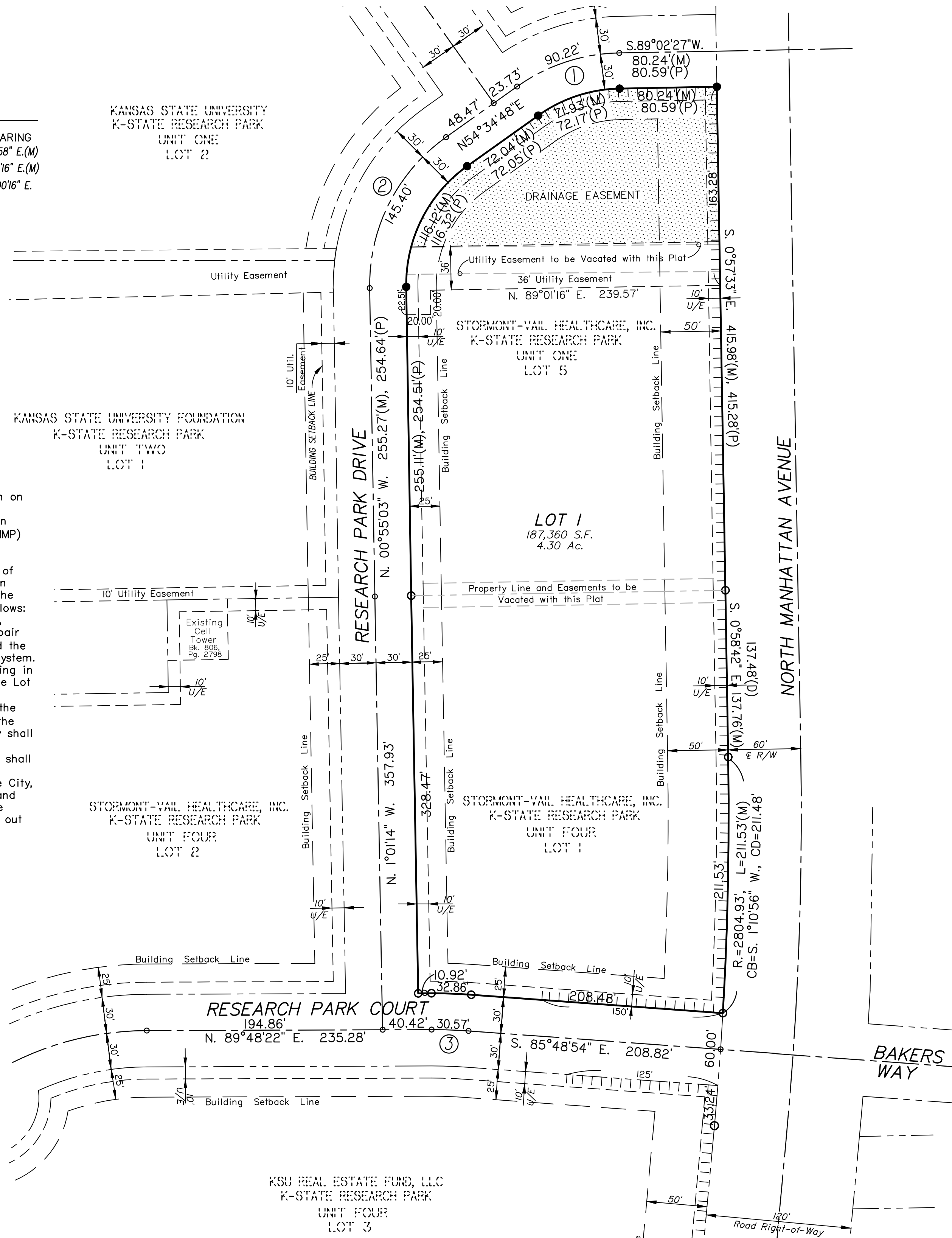
The dedicated public rights-of-way and easements, as shown on this plat, are hereby accepted by the City Commission of the City of Manhattan, Kansas, as of this ____ day of _____, 2021.

The only easements and rights of way, dedicated to the public, are as shown on this plat. Any such easements and rights of way that were previously dedicated to the public, over and across the area within the boundaries of this plat, whether such dedication was by a previous plat or other document or instrument, are hereby vacated and removed by the City Commission's acceptance of the easements and rights of way shown hereon.

Governing Body of the City of Manhattan, Kansas.

Brenda K. Wolf, CMC, City Clerk

Wynn Butler, Mayor



SURVEYOR'S CERTIFICATE

STATE OF KANSAS)
COUNTY OF RILEY) SS:

I, the undersigned do hereby certify that I am a Registered Land Surveyor in the State of Kansas with experience and proficiency in land surveying, that the heretofore described property was surveyed and subdivided by me, or under my supervision, that all subdivision regulations of the City of Manhattan, Kansas, have been complied with in the preparation of this plat, and that all the monuments shown herein actually exist and their positions are correctly shown to the best of my knowledge and belief.

Given under my hand and seal at Manhattan, Kansas this ____ day of _____, A.D. 20____.

Schwab-Eaton

RILEY COUNTY PLAT REVIEW SURVEYORS SIGNATURE BLOCK

STATE OF KANSAS)
COUNTY OF RILEY) SS:

This Plat has been reviewed and approved for filing pursuant to and in compliance with K.S.A. 58-2005 and with the requirements of Riley County Resolution No. 082913-58. No other warranties are extended or implied.

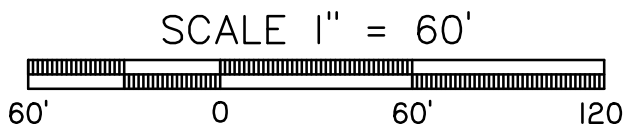
Approved: _____ Date: _____
License: _____

Harlan G. Ross, P.S. 1290

LAND BOUNDARY DESCRIPTION:

Lot Five (5), K-State Research Park, Unit One and Lot One (1), K-State Research Park, Unit Four, Additions to the City of Manhattan, Riley County, Kansas. Subject to easements and restrictions of record. Said tracts contain 4.30 acres more or less.

ALL BEARINGS AND DISTANCES SHOWN ON THIS PLAT ARE MEASURED, UNLESS OTHERWISE NOTED



LEGEND

- △ SECTION CORNER
- 1/2" REBAR FOUND FROM PREVIOUS S-E SURVEYS UNLESS OTHERWISE NOTED
- 1/2"x 24" BAR W/CLS 59 CAP SET THIS SURVEY
- ① CURVE NUMBER
- (M) MEASURED DISTANCE
- (P) PLAT DISTANCE
- PROPERTY LINE
- - - ADJACENT PROPERTY LINE
- - - PROPERTY LINE TO BE VACATED
- - - EASEMENT TO BE VACATED
- - - ROAD CENTERLINE
- - - EASEMENT LINE (See Note 6)
- - - BUILDING SETBACK LINE
- - - NO VEHICULAR ACCESS
- ▨ DRAINAGE EASEMENT

GENERAL NOTES

- Bearings shown for this survey are based on a previous survey. For the purpose of this survey, North is based on the West R/W line of North Manhattan Avenue which is assumed to bear S 0°58'42" E.
- No gaps or overlaps were discovered during this survey.
- No buildings exist on this property currently.
- Easements, setbacks, restrictions or encumbrances of record if any, affecting the title to this tract are shown to the best of our knowledge.
- The tract surveyed hereon is in Flood Zone X, areas determined to be outside of the 1% and 0.2% annual chance flood boundary according to FEMA FIRM 20161C0354G, revised March 16, 2015. Maps subject to change, for more information, visit www.floodsmart.gov.
- All existing easements within the area being platted hereon are to be vacated with this plat. The easements shown hereon are to be established with this plat.
- A 5 foot wide sidewalk shall be constructed on at least one side of all interior streets.
- A Reapportionment Agreement will need to be executed before the Final Plat of K-state Research Park, Unit Five can be filed.

A REPLAT OF LOT 5, K-STATE RESEARCH PARK, UNIT ONE AND LOT 1, K-STATE RESEARCH PARK, UNIT FOUR

FINAL PLAT

K-STATE RESEARCH PARK UNIT FIVE

AN ADDITION TO THE CITY OF
MANHATTAN, RILEY COUNTY, KANSAS
PREPARED BY



CONSULTING ENGINEERS - LAND SURVEYORS - LANDSCAPE ARCHITECTS
5410 LEDGE STONE DR., STE 100 - MANHATTAN, KANSAS - PH 785-539-4687

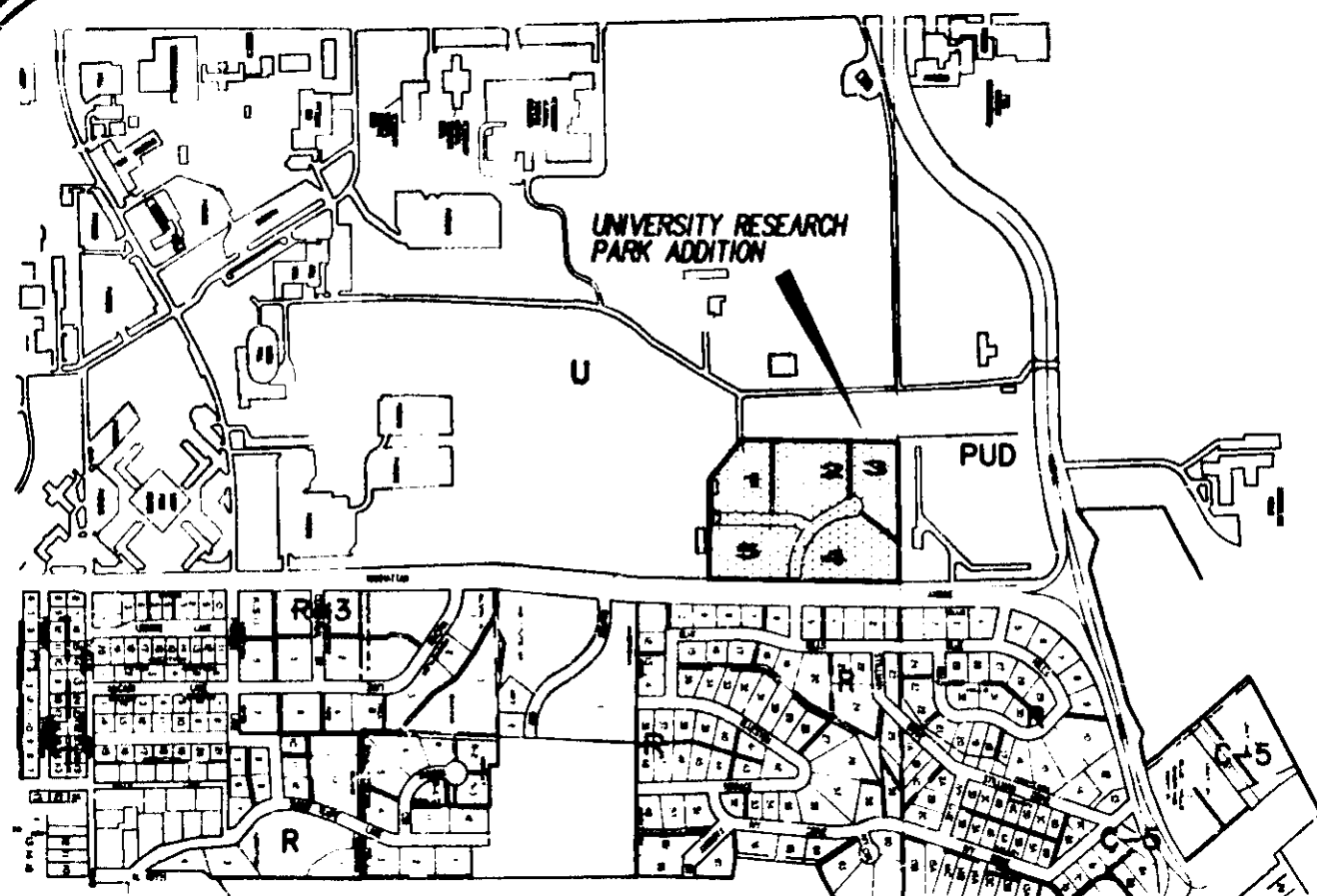
FEBRUARY 2021

OWNER/DEVELOPER:
Stormont-Vail HealthCare, Inc.
c/o David Cunningham
1500 S.W. 10th Avenue
Topeka, KS 66604
(785) 354-6167

ENGINEER:
Schwab-Eaton P.A.
5410 Ledge Stone Drive, Ste. 100
Manhattan, KS 66603
(785) 539-4687

EXISTING ZONING: "U"
University

EXISTING LAND USE:
Vacant Lots



SITE MAP

OWNER'S CERTIFICATE

STATE OF KANSAS) SS:
COUNTY OF RILEY)

This is to certify that the undersigned are the owners of record of the land hereon described on this plat, and that the undersigned have caused the same to be surveyed and subdivided as herein set forth.

The undersigned, as such owners, do hereby state that all street right-of-ways as shown on this plat are hereby dedicated to the public. An easement and license to locate, construct, operate, inspect, replace and maintain, or authorize the location, construction, operation, inspection, replacement and maintenance of poles, wires, conduits, water, gas, and sewer pipes; required drainage channels or structures; hard and impervious surfaces, or other structures necessary to carry out the function of the easement, upon the area marked for easements on this plat, is also hereby dedicated to the public. When, and if, used on this plat, the term "utility" shall include, by way of example, but not limited to, sewer, water, gas, electricity, cable T.V. and telephone. When, and if, used on this plat, the term "travel" shall include all forms of travel, by whatever means, unless the term is limited by other words or phrases, such as, "pedestrian travel", etc. The undersigned acknowledges that pursuant to K.S.A. 12-406, the dedication of right-of-ways and easements to the public constitutes a conveyance thereof to the City of Manhattan, Kansas, in trust, for the uses named, expressed or intended.

Given under my hand at Manhattan, Kansas, this 8 day of January, 2001

Gary Hellebus
Gary Hellebus, President
K.S.U. Foundation

NOTARY CERTIFICATE

STATE OF KANSAS) SS:
COUNTY OF RILEY)

BE IT REMEMBERED, that on this 8 day of January, 2001, before me, the undersigned, a notary public in and for the County and State aforesaid, came Gary Hellebus, President of the K.S.U. Foundation personally known to me to be the same persons who executed the foregoing Owner's Certificate, and duly acknowledged their execution of the same.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my notarial seal on the day and year last above written.

SEAL

Dale A. Suther
Notary Public - State of Kansas
DALE A. SUTHER
My Comm. Exp. 2-17-2004

CERTIFICATE OF THE CITY COMMISSION

STATE OF KANSAS) SS:
COUNTY OF RILEY)

Approved this 16 day of January, 2001
Board of City Commissioners of the City of Manhattan, Kansas

Karen McCullough
Karen McCullough, Mayor

Attest: *Bruce K. Wolf*
City Clerk



CERTIFICATE OF THE REGISTER OF DEEDS

STATE OF KANSAS) SS:
COUNTY OF RILEY)

This instrument was filed for record on the 26 day of January, A.D. 2001, at 3:30 o'clock P.M., and duly recorded in Book 367 at Page 147

Patricia Barry
Register of Deeds
By *Patricia Barry* Deputy



MANHATTAN URBAN AREA PLANNING BOARD CERTIFICATE

STATE OF KANSAS) SS:
COUNTY OF RILEY)

Approved this 26 day of January, 2001
Manhattan Urban Area Planning Board
Manhattan, Kansas

Mike L. Hill
Chairperson
Mike Kratochvil
John Phillips
Michael R. Toy
Attest: *Steven A. Zilke*

REVIEW CERTIFICATE:

STATE OF KANSAS) SS:
COUNTY OF RILEY)

This Survey has been reviewed and approved for filing pursuant to KSA 86-2003, 86-2004 and 86-2005 also KAR 86-12-1 for contest only and is in compliance with this Act, no other warranties are expressed or implied.
Approved: *Mike L. Hill* Lic. 256
Date: 1/1/01

ENGINEER'S CERTIFICATE

STATE OF KANSAS) SS:
COUNTY OF RILEY)

Approved this 16 day of January, A.D. 2001
Scott Drain, P.E.
City Engineer

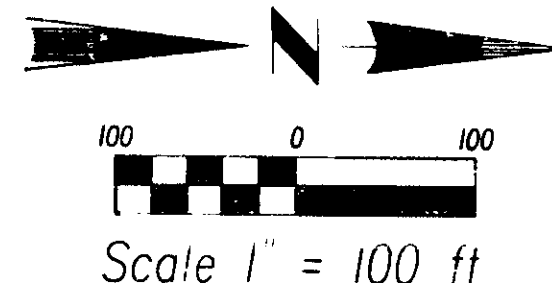
SURVEYOR'S CERTIFICATE

STATE OF KANSAS) SS:
COUNTY OF RILEY)

I, the undersigned do hereby certify that I am a Registered Land Surveyor in the State of Kansas with experience and proficiency in land surveying, that the heretofore described property was surveyed and subdivided by me, or under my supervision, that all subdivision regulations of the City of Manhattan, Kansas, have been complied with in the preparation of this plat, and that all the monuments shown herein actually exist and their positions are correctly shown to the best of my knowledge and belief.

Given under my hand and seal at Manhattan, Kansas, this 16 day of January, A.D. 2001

John R. Young
John R. Young
Surveyor



Scale 1" = 100 ft

LEGEND

- 1/2"x 24" BAR FOUND IN PLACE ORIGIN FLINT HILLS PLACE
- 1/2"x 24" BAR SET THIS SURVEY
- △ SECTION CORNER
- △ SURVEY POINT NOT SET
- ① CURVE NUMBER
- NO VEHICULAR ACCESS

CURVE DATA

Δ	R	T	L	CD
① 34°27'39"	150.00'	46.52'	90.22'	88.86'
② 55°32'21"	150.00'	78.98'	145.40'	139.78'

LEGAL DESCRIPTION

A tract of land in Lot 4, Section 7, Township 10 South, Range 8 East of the 6th Principal Meridian in the City of Manhattan, Riley County, Kansas described as follows:

Beginning at a point on the West line of North Manhattan Avenue and the North line of Lot 4 of said Section 7 that is South 89 degrees 18 minutes 16 seconds West for a distance of 60.00 feet from the Northeast Corner of Lot 4 of said Section 7;

THENCE South 00 degrees 57 minutes 33 seconds East for a distance of 980.28 feet along the West line of said North Manhattan Avenue;

THENCE South 89 degrees 02 minutes 27 seconds West for a distance of 260.00 feet;

THENCE South 88 degrees 47 minutes 53 seconds West for a distance of 60.00 feet;

THENCE South 89 degrees 08 minutes 05 seconds West for a distance of 157.36 feet;

THENCE North 51 degrees 16 minutes 09 seconds West for a distance of 253.63 feet;

THENCE North 00 degrees 57 minutes 33 seconds West for a distance of 820.00 feet to the North line of Lot 4 of said Section 7;

THENCE North 89 degrees 18 minutes 16 seconds East for a distance of 674.23 feet along the North line of Lot 4 of said Section 7 to the point of beginning.

Together with and subject to covenants, easements, and restrictions of record.

Said property contains 14.826 acres more or less.

NOTES:

- NONE OF THE SUBDIVISION LIES WITHIN THE 100-YR OR 500-YR FLOOD PLAIN. NO PERIODIC FLOODING HAS BEEN REPORTED FOR THIS AREA.
- EXISTING ON SITE STRUCTURES WILL BE REMOVED AS EACH LOT IS DEVELOPED.
- BASIS OF BEARING FROM PLAT OF PERMANENT SURVEY FOR H.A. JOINER DATED 16 AUGUST 1974 AND ON FILE IN THE OFFICE OF THE RILEY COUNTY ENGINEER.
- NO GAPS OR OVERLAPS WERE FOUND TO BE PRESENT UNLESS NOTED ON THIS PLAT.
- PRIOR TO THE ISSUANCE OF A BUILDING PERMIT ON ANY LOT WITHIN THE K-STATE RESEARCH PARK ADDITION, THE CALCULATIONS AND DESIGNS FOR ALL NECESSARY STORM DRAINAGE DETENTION IMPROVEMENTS FOR THAT LOT SHALL BE PROVIDED IN CONFORMANCE WITH THE STORM WATER MANAGEMENT MASTER PLAN (SWAMP) AND SHALL BE REVIEWED AND APPROVED BY THE CITY ENGINEER. ALL NECESSARY STORM DRAINAGE IMPROVEMENTS FOR THE LOT IN QUESTION SHALL BE CONSTRUCTED CONCURRENTLY WITH THE BUILDING. DRAINAGE EASEMENTS SHALL BE PROVIDED BY THE PROPERTY OWNER. AS MAY BE REQUIRED, TO CONFORM TO THE REQUIREMENTS OF THE SWAMP. MAINTENANCE OF ALL DETENTION FACILITIES AND DRAINAGE EASEMENTS SHALL BE THE RESPONSIBILITY OF THE PROPERTY OWNER.
- A PUBLIC SANITARY SEWER MAIN SHALL BE AVAILABLE ACROSS FLINT HILLS PLACE IN ORDER TO SERVE THE K-STATE RESEARCH PARK ADDITION.

BENCH MARK:

B.M. #1 - CONCRETE BLOCK AND BRASS PLUG FOUND IN GROUND SOUTH OF THE K.S.U. STONE HOUSE
N. 7895.47, E. 3513.46. ELEVATION = 1097.56

FINAL PLAT K-STATE RESEARCH PARK UNIT ONE

AN ADDITION TO THE CITY OF MANHATTAN
RILEY COUNTY, KANSAS

PREPARED BY

Schwab-Eaton, P.A.

CONSULTING ENGINEERS - LAND SURVEYORS - LANDSCAPE ARCHITECTS
1125 GARDEN WAY MANHATTAN, KANSAS PH 785-539-4687

JANUARY 2001

PROJECT NO. 9784

K-367

